

Constitutional Foundations

Making of the Constitution, Sources, Preamble, Salient Features and the Basic Structure Doctrine

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NOTE · HOW TO USE THIS DOCUMENT

Priority ★★★★★ · Study time 120 minutes · Difficulty Moderate. This is the foundation chapter for the whole of Module 1. Read the Q&A body once in a morning hour, then revise only Sections 12 and 13 thereafter. Everything marked MUST MASTER is examinable as a single fact; everything else exists to make those facts stick.

Priority ratings and study times are the author's Analytical Estimates for planning purposes, not official UPSC weightage. Constitutional facts stated here follow the Constitution of India and settled Supreme Court judgments.

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1. Why This Chapter Exists

You are a Mechanical Engineer being asked to learn a legal system. The good news is that a constitution is not really a law book - it is a **system specification**. Read it that way and Polity stops being memorisation.

Before any content, here is the honest exam case for this chapter.

Question	Answer
Is this chapter directly asked?	Occasionally, not heavily. PYQ-DERIVED: the 2015 APFC paper asked what formed the <i>basic premise</i> for developing the Indian Constitution, and asked a statement-based question on what the Constitution provides. The 2023 paper asked nothing directly from this chapter.
Then why ★★★★★ and not ★★☆☆☆?	Because it is load-bearing . Every later chapter - Parliament, Judiciary, Centre-State relations, and critically the labour Articles - depends on the vocabulary and logic built here. Studying Article 43 without knowing what a Directive Principle <i>is</i> means memorising noise.
How much time?	120 minutes total , once. Then it lives only on your wall sheet.

MUST MASTER · THE TWO FACTS FROM THIS CHAPTER MOST LIKELY TO BE ASKED DIRECTLY

- 1 The **Government of India Act, 1935** is the single largest source of the Constitution - roughly 250 provisions were drawn from it. This is the most probable answer to any "basic premise / main source" question.
- 2 The **Preamble has been amended exactly once**, by the **42nd Amendment Act, 1976**, which inserted three words: *Socialist, Secular and Integrity*.

1.1 The system analogy - and its limits

Think of the Constitution as the design specification of a machine:

Engineering concept	Constitutional equivalent	Where it lives
Design objectives	Preamble	Preamble
Subsystems and their functions	Legislature, Executive, Judiciary	Parts V and VI
Interface definitions	Centre-State distribution of powers	Part XI, Seventh Schedule
Operating limits / safety interlocks	Fundamental Rights	Part III
Design intent, non-binding targets	Directive Principles	Part IV
Overload protection	Emergency provisions	Part XVIII
Engineering change procedure	Amendment procedure	Article 368
Non-negotiable design core	Basic structure doctrine	Judge-made, not in the text

COMMON UPSC TRAP · WHERE THE ANALOGY BREAKS - DO NOT CARRY IT TOO FAR

A machine specification can be rewritten completely by its owner. The Constitution cannot: Parliament amends it, but the **basic structure** cannot be destroyed even by a validly passed amendment. Also, unlike a spec, the Constitution is *interpreted* - the same text means what the Supreme Court currently says it means. Keep the analogy for **structure**; drop it the moment you deal with **interpretation**.

2. Historical Build-Up

Q. Why should an APFC candidate care about colonial-era Acts at all?

Ans. Because the Constitution was not written on a blank page. It is largely an adaptation of the **Government of India Act, 1935**, and UPSC likes asking which document contributed which feature.

Keep this section deliberately thin. You need the *direction of travel* and about eight facts - not a history of British India. That belongs to Module 5.

2.1 The minimum viable timeline ★★★★★

Year	Instrument	The one thing it contributed
1773	Regulating Act	First step of British parliamentary control over the Company
1858	Government of India Act	Crown rule replaces Company rule
1861	Indian Councils Act	Beginning of legislative devolution; Indians associated with law-making
1892	Indian Councils Act	Indirect elections introduced
1909	Morley-Minto Reforms	Separate electorates for Muslims - communal representation
1919	Montagu-Chelmsford Reforms	Dyarchy in provinces; bicameral central legislature
1935	Government of India Act	Federal scheme, provincial autonomy, Governor, Federal Court, PSCs, emergency provisions. The single largest source.
1947	Indian Independence Act	Ends British paramountcy; Constituent Assembly becomes sovereign

MEMORY TECHNIQUE · FIXING 1909 / 1919 / 1935

Three reforms, three "firsts", in ascending order of substance: **1909 = Separate electorates** (division), **1919 = Dyarchy** (split executive), **1935 = Federation** (structure).

Mnemonic: **S - D - F**, "Separate, Dyarchy, Federation" - and note the gaps are 10 and 16 years.

2.2 The Constituent Assembly ★★★★★

Q. How was the Constituent Assembly created, and was it elected by the people?

Ans. It was constituted in **November 1946** under the **Cabinet Mission Plan, 1946**. It was **indirectly elected** - members were chosen by the provincial legislative assemblies through a single transferable vote system of proportional representation. It was never elected by universal adult franchise.

This is a favourite trap. Do not say "directly elected by the people of India".

Fact	Detail
First meeting	9 December 1946
Temporary / provisional President	Dr. Sachchidananda Sinha
Permanent Chairman elected	Dr. Rajendra Prasad , on 11 December 1946
Vice-Chairmen	H. C. Mukherjee; V. T. Krishnamachari

Fact	Detail
Constitutional Adviser	Sir B. N. Rau
Objectives Resolution	Moved by Jawaharlal Nehru on 13 December 1946; adopted 22 January 1947
Drafting Committee	Set up 29 August 1947 ; 7 members ; Chairman Dr. B. R. Ambedkar
Constitution adopted	26 November 1949
Constitution commenced	26 January 1950
Time taken	2 years, 11 months and 18 days ; 11 sessions
Original text	Preamble + 395 Articles in 22 Parts + 8 Schedules
Present text	About 470 Articles in 25 Parts + 12 Schedules

THINK LIKE UPSC · TWO DATES, AND THE TRAP THAT LIVES BETWEEN THEM

The Constitution was **adopted on 26 November 1949** but **came into force on 26 January 1950**. That gap is deliberate exam bait.

A subtlety worth one mark: a handful of provisions commenced immediately on 26 November 1949 - those on **citizenship, elections, provisional Parliament** and a few interim matters (Articles 5 to 9, 60, 324, 366, 367, 379 to 380, 388, 391 to 393). Everything else waited for 26 January 1950.

26 November is observed as **Constitution Day**; **26 January** as Republic Day - chosen to honour the Lahore Congress "Purna Swaraj" declaration of 1930.

COMMON UPSC TRAP · WHY

The original 395 Articles were never renumbered. Later insertions were given letters - Article 21A (education), Article 43A (workers' participation), Article 243 series (panchayats), Article 371J. So the **highest numbered Article is still 395**, while the **actual count is about 470**. If an option says the Constitution "now has 395 Articles" it is testing exactly this.

3. Sources of the Constitution ★★★★★

Q. Is it a criticism that the Constitution is "borrowed"?

Ans. Ambedkar's own defence was that after a century of constitutional experiment worldwide, refusing to learn from others would be foolishness, not originality. What matters for the RT is simply **which feature came from where.**

Source	Features borrowed
Government of India Act, 1935	Federal scheme, office of Governor, judiciary, Public Service Commissions, emergency provisions, administrative details. Largest single source.
Britain	Parliamentary government, rule of law, single citizenship, cabinet system, prerogative writs, parliamentary privileges, bicameralism, legislative procedure
United States	Fundamental Rights, independence of judiciary, judicial review, impeachment of the President, removal of Supreme Court and High Court judges, office of Vice-President, preamble idea
Ireland	Directive Principles of State Policy , nomination of members to Rajya Sabha, method of election of the President
Canada	Federation with a strong Centre, residuary powers with the Centre, appointment of State Governors by the Centre, advisory jurisdiction of the Supreme Court
Australia	Concurrent List, freedom of trade, commerce and intercourse, joint sitting of the two Houses
Soviet Union (USSR)	Fundamental Duties , ideal of justice - social, economic and political - in the Preamble
France	Republic, and the ideals of Liberty, Equality and Fraternity
Weimar Germany	Suspension of Fundamental Rights during an emergency
South Africa	Procedure for amendment of the Constitution, election of Rajya Sabha members
Japan	"Procedure established by law"

COMMON UPSC TRAP · THE SINGLE MOST SWAPPED PAIR IN ALL OF POLITY

Directive Principles come from IRELAND. Fundamental Duties come from the USSR.

Both are "duties/directives", both sound socialist, and UPSC swaps them freely. Additionally: **Fundamental Rights are from the USA**, not Britain.

MEMORY TECHNIQUE · LOCKING THE FOUR HEAVY HITTERS

- Ireland gives **I**deals to follow → **D**irective **P**inciples
- **U**SSR gives **U**S our duties → **F**undamental **D**uties
- **U**SA: **A** for **A**dversarial courts → **F**undamental **R**ights, judicial review, impeachment
- **C**anada: cold country, strong centre → strong **C**entre, residuary powers, "**U**nion"

4. The Preamble ★★★★★

Q. What is the Preamble actually for?

Ans. It is the **statement of design intent**. It declares the *source* of the Constitution's authority (the people), the *nature* of the State, the *objectives* to be secured, and the *date* of adoption.

4.1 The four things the Preamble tells you

Element	What the Preamble says
Source of authority	"We, the people of India" - the Constitution derives from the people, not from a grant by the Crown
Nature of the State	Sovereign, Socialist, Secular, Democratic, Republic
Objectives	Justice, Liberty, Equality, Fraternity
Date of adoption	26 November 1949

4.2 The keywords, precisely ★★★★★

Keyword	Exact meaning
Sovereign	India is independent of external control and free to conduct its own affairs, internal and external
Socialist	Added by the 42nd Amendment, 1976 . Indian socialism is <i>democratic socialism</i> - a mixed economy where public and private sectors coexist, not Soviet-style state ownership
Secular	Added by the 42nd Amendment, 1976 . India has no State religion ; all religions get equal respect and protection. Note: secularism was already implicit in Articles 25 to 28
Democratic	Government rests on the will of the people, expressed through universal adult franchise; covers political, social and economic democracy
Republic	The Head of State is elected , not hereditary, and the office is open to every citizen. This is the contrast with the United Kingdom
Justice	Social, economic and political - in that order. Borrowed from the USSR
Liberty	Of thought, expression, belief, faith and worship
Equality	Of status and of opportunity
Fraternity	Assuring the dignity of the individual and the unity and integrity of the Nation - "integrity" added by the 42nd Amendment

MEMORY TECHNIQUE · PREAMBLE IN ONE LINE

Order of the State's description: **S-S-S-D-R** - Sovereign, Socialist, Secular, Democratic, Republic.

Order of objectives: **J-L-E-F** - Justice, Liberty, Equality, Fraternity. Justice comes *first*, Fraternity *last*.

The 42nd Amendment added exactly three words - **S, S, I**: **S**ocialist, **S**ecular, **I**ntegrity.

4.3 Is the Preamble part of the Constitution? ★★★★★

Q. Is the Preamble part of the Constitution, and can it be amended?

Ans. Yes to both - but only after a change of judicial position.

- 1 **Berubari Union case (1960):** the Supreme Court held the Preamble is **not** part of the Constitution, though it is a key to the makers' minds.
- 2 **Kesavananda Bharati case (1973):** the Court **reversed** itself - the Preamble **is** part of the Constitution and **can be amended**, provided the basic structure is not destroyed.
- 3 **LIC of India case (1995):** reaffirmed that the Preamble is an integral part of the Constitution.
- 4 It has in fact been amended **once**, by the **42nd Amendment Act, 1976**.

COMMON UPSC TRAP · THREE SEPARATE TRAPS IN ONE SMALL TOPIC

- 1 **"The Preamble has never been amended."** False - amended once, by the 42nd Amendment, 1976.
- 2 **"The Preamble is not part of the Constitution."** This was the position in *Berubari* (1960) but was **overruled** in *Kesavananda Bharati* (1973). If a question gives no date, the current law is that it **is** part of the Constitution.
- 3 **"The Preamble is enforceable in a court of law."** False. It is part of the Constitution, but it is **non-justiciable** - it confers no power and imposes no duty by itself. Being *part of* something is not the same as being *enforceable*.

THINK LIKE UPSC · THINK LIKE UPSC

Watch how one word flips a statement: "*The Preamble is a part of the Constitution and is enforceable in courts.*" - Statement one is true, statement two is false, so the composite is **incorrect**. This is the standard construction. Evaluate every clause separately before judging the whole.

Also watch the words *Socialist* and *Secular* attached to "the original Constitution" - they were inserted in 1976, twenty-six years after commencement.

5. Salient Features ★★★★★

Q. What are the defining characteristics of the Indian Constitution?

Ans. Twelve features are worth recognising. You need **recognition**, not recitation - these are typically the wrong options in questions rather than the right one.

- 1 **Longest written constitution in the world** - a consequence of size and diversity, a single constitution for Centre and States, and the sheer administrative detail inherited from the 1935 Act
- 2 **Drawn from many sources**, chiefly the Government of India Act, 1935
- 3 **Blend of rigidity and flexibility** - three different amendment routes under Article 368 and otherwise
- 4 **Federal system with a unitary bias**
- 5 **Parliamentary form of government**, not presidential
- 6 **Synthesis of parliamentary sovereignty and judicial supremacy** - neither British nor American extreme
- 7 **Integrated and independent judiciary** - a single hierarchy for both Union and State laws
- 8 **Fundamental Rights** (Part III) and **Directive Principles** (Part IV)
- 9 **Fundamental Duties** - added by the 42nd Amendment, 1976
- 10 **Universal adult franchise** and **single citizenship**
- 11 **Independent bodies** - Election Commission, CAG, UPSC, Finance Commission
- 12 **Emergency provisions**, and a **three-tier government** after the 73rd and 74th Amendments

5.1 Why "Union of States" and not "Federation" ★★★★★

Q. Article 1 says "India, that is Bharat, shall be a Union of States." Why was the word *Union* chosen?

Ans. Ambedkar gave two reasons in the Assembly: first, the Indian federation is **not the result of an agreement** among the States, as the American union was; second, the States have **no right to secede** from it.

This is precise, quotable, and directly examinable. "Union" signals indestructibility.

Federal features	Unitary features
Written constitution; supremacy of the Constitution	Strong Centre - Union List is longest and Parliament prevails on the Concurrent List
Dual polity: Union and States	Single citizenship
Division of powers via the Seventh Schedule	Residuary powers with the Centre (unlike the USA)
Rigid amendment for federal provisions	Governors appointed by the Centre
Independent judiciary; bicameralism	Integrated judiciary ; all-India services; emergency provisions
States have their own legislature and executive	Parliament can alter State boundaries and names

KNOW · WHO CALLED IT WHAT

- **K. C. Wheare:** "quasi-federal"
- **Granville Austin:** "cooperative federalism"
- **Ambedkar:** the Constitution is both unitary and federal **according to the requirements of time and circumstances**
- The Supreme Court has described India as having a federal structure with a **strong unitary bias**

6. The Basic Structure Doctrine ★★★★★

Q. What problem was the basic structure doctrine invented to solve?

Ans. A pure logic problem. Article 368 lets Parliament amend the Constitution. If that power is **unlimited**, Parliament could amend away Fundamental Rights, abolish elections, or make itself permanent - and destroy the Constitution *using the Constitution's own procedure*. The doctrine is the answer: **the amending power cannot be used to destroy the identity of the Constitution itself.**

6.1 The evolution, in four judgments ★★★★★

Case	Year	What was held
Shankari Prasad	1951	Parliament can amend Fundamental Rights; "law" in Article 13 does not include a constitutional amendment
Golaknath	1967	Reversed course - Fundamental Rights are immutable ; Parliament cannot amend them
Kesavananda Bharati	1973	The landmark. Parliament can amend any part, including Fundamental Rights, but cannot destroy the "basic structure" . Golaknath overruled. Decided by a 13-judge bench , by a majority of 7 to 6
Minerva Mills	1980	Struck down parts of the 42nd Amendment; judicial review and limited amending power are themselves part of the basic structure

MUST MASTER · THE ONE CASE YOU CANNOT GET WRONG

Kesavananda Bharati v. State of Kerala, 1973. It simultaneously did three things: held that the **Preamble is part of the Constitution**, overruled **Golaknath**, and **created the basic structure doctrine**. If a question mentions any of those three, this is the case.

6.2 What is inside the basic structure

The Court has never issued a closed list - it decides case by case. Elements recognised so far include: supremacy of the Constitution; the sovereign, democratic and republican character of the polity; **secularism; federalism; separation of powers; judicial review** and Article 32; **rule of law; free and fair elections; independence of the judiciary**; the parliamentary system; the **welfare state** objective; **harmony between Fundamental Rights and Directive Principles**; and the **limited nature of the amending power**.

COMMON UPSC TRAP · DELIBERATELY OPEN-ENDED

Any option asserting that the basic structure is an **exhaustive** or **defined list** in the Constitution is **wrong** on two counts: the doctrine appears **nowhere in the text** - it is entirely judge-made - and the list is **open**. That open-endedness is the whole point; it is what lets the doctrine respond to new threats.

7. The APFC Connection ★★★★★

This is the section that makes the chapter worth your 120 minutes. Three threads run from here into the labour and social security modules.

7.1 Labour is a Concurrent List subject

The Constitution places labour in the **Concurrent List** of the Seventh Schedule, which is precisely why both Parliament and State legislatures legislate on it, and why central labour law dominates when the two conflict.

Entry	Subject (Concurrent List, List III)
22	Trade unions; industrial and labour disputes
23	Social security and social insurance; employment and unemployment
24	Welfare of labour , including conditions of work, provident funds, employers' liability, workmen's compensation, invalidity and old age pensions, and maternity benefits

MUST MASTER · ENTRY 24 IS THE CONSTITUTIONAL BASIS OF YOUR FUTURE JOB

Read Entry 24 again: **provident funds**, employers' liability, workmen's compensation, old age pensions, maternity benefits. The EPF & MP Act, 1952, the Employees' Compensation Act, 1923 and the Maternity Benefit Act, 1961 all sit on this constitutional foundation. When Module 3 asks *why* the Union can legislate on provident funds at all, the answer is Entry 24 of the Concurrent List.

7.2 The labour Articles you will meet again

Detail comes in Chapters 1.3 and 1.4. Recognise them now:

Article	Provision	Part
23	Prohibition of traffic in human beings and forced labour	III - Fundamental Right
24	Prohibition of child labour in factories, mines and hazardous employment below 14 years	III - Fundamental Right
39	Adequate means of livelihood; equal pay for equal work ; health of workers	IV - DPSP
41	Right to work, education and public assistance in old age, sickness, disablement	IV - DPSP
42	Just and humane conditions of work and maternity relief	IV - DPSP
43	Living wage and decent conditions of work	IV - DPSP
43A	Participation of workers in management - added by the 42nd Amendment, 1976	IV - DPSP

PYQ CONNECTION · BOTH OF THESE WERE ACTUALLY ASKED

PYQ-DERIVED. In the **2023 APFC paper**, one question asked which Article enjoins the State to secure payment for work through legislation or economic organisation - **Article 43**. Another asked which Article prohibits employment of children in a factory or mine - **Article 24**.

That is **two questions, five marks**, sitting exactly on the Polity-Labour boundary. This is why Module 1 comes before Module 2.

7.3 The structural point about social security

Notice the asymmetry: **forced labour and child labour are Fundamental Rights** - enforceable in court under Article 32. **Living wage, social assistance and worker participation are Directive Principles** - not enforceable. So India's social security architecture rests mostly on **non-justiciable** directives, given force only through **ordinary legislation** such as the EPF Act. That single insight explains why statutes matter so much in your job, and it is exactly the kind of distinction UPSC tests.

8. Common UPSC Traps - Consolidated

Trap	Correct position
Preamble never amended	Amended once , 42nd Amendment, 1976
Preamble not part of the Constitution	It is - <i>Kesavananda</i> 1973 overruled <i>Berubari</i> 1960
Preamble is enforceable	Not enforceable; part of the Constitution but non-justiciable
"Socialist" and "Secular" in the original Preamble	Inserted in 1976
Constituent Assembly directly elected by the people	Indirectly elected by provincial assemblies
Constitution came into force on 26 November 1949	Adopted 26 Nov 1949; commenced 26 Jan 1950
Directive Principles from the USSR	From Ireland . Fundamental Duties are from the USSR
Fundamental Rights from Britain	From the USA
Residuary powers with the States	With the Centre - unlike the USA
India is a "Federation of States"	Article 1: " Union of States "
Basic structure is listed in the Constitution	Judge-made ; appears nowhere in the text; list is open
Golaknath created the basic structure doctrine	Kesavananda Bharati (1973) did; it overruled Golaknath
Ambedkar was Chairman of the Constituent Assembly	He chaired the Drafting Committee ; Rajendra Prasad chaired the Assembly
Objectives Resolution moved by Ambedkar	Moved by Nehru
The Constitution now has 395 Articles	Highest number is still 395; actual count about 470

MEMORY TECHNIQUE · THE 42ND AMENDMENT -

So much of this chapter traces back to one amendment that it is worth learning as a bundle. The **42nd Amendment Act, 1976** gave us: **Socialist, Secular, Integrity** in the Preamble;

Fundamental Duties (Part IVA); and **Article 43A**, workers' participation in management.

For the RT: if a question involves a word or provision that "was added later", the 42nd Amendment is the highest-probability answer.

9. Practice MCQs

Attempt all fourteen before looking at Section 10. Apply the attempt rule from the Blueprint - if you can eliminate one option, commit to an answer.

Level 1 - Basic recall

Q. 1. The Constituent Assembly of India was constituted under which plan?

(a) Cripps Mission, 1942 (b) Cabinet Mission Plan, 1946 (c) Mountbatten Plan, 1947 (d) August Offer, 1940

Q. 2. Who was the Constitutional Adviser to the Constituent Assembly?

(a) Dr. B. R. Ambedkar (b) K. M. Munshi (c) Sir B. N. Rau (d) Alladi Krishnaswamy Ayyar

Q. 3. The Directive Principles of State Policy were borrowed from the constitution of

(a) the Soviet Union (b) Ireland (c) the United States (d) Canada

Q. 4. How many words were inserted into the Preamble by the 42nd Amendment Act, 1976?

(a) One (b) Two (c) Three (d) Four

Level 2 - Conceptual

Q. 5. The term "Republic" in the Preamble signifies primarily that

(a) India has no State religion (b) the Head of State is elected and the office is open to all citizens (c) sovereignty rests with the people (d) India follows a parliamentary system

Q. 6. The word "Union" rather than "Federation" was used in Article 1 chiefly to convey that

(a) India has a unitary constitution (b) the States are administrative units of the Centre (c) the federation is not the result of an agreement among States and the States cannot secede (d) residuary powers vest in the Centre

Q. 7. Which one of the following is not correct about the Preamble?

(a) It is a part of the Constitution (b) It can be amended without destroying the basic structure (c) It is enforceable in a court of law (d) It declares the source of the Constitution's authority

Level 3 - Statement based

Q. 8. Consider the following statements:

- The Preamble was held to be a part of the Constitution in the Berubari Union case.
- The Preamble has been amended only once.

Which of the above statements is/are correct? (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Q. 9. Consider the following statements about the Kesavananda Bharati case, 1973:

- It overruled the Golaknath judgment.
- It held that Parliament cannot amend Fundamental Rights at all.
- It held that the Preamble is a part of the Constitution.

Which of the above statements are correct? (a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 10. Consider the following statements regarding the Seventh Schedule:

- Trade unions and industrial and labour disputes fall in the Concurrent List.
- Social security and social insurance fall in the Union List.
- Welfare of labour, including provident funds, falls in the Concurrent List.

Which of the above statements are correct? (a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 11. Which of the following came into force on 26 November 1949 itself?

- Provisions relating to citizenship
- Provisions relating to elections
- Provisions relating to Fundamental Rights

Select the correct answer: (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Level 4 - Elimination based

Q. 12. Match the feature with its source and select the correct answer.

Feature: (i) Fundamental Duties (ii) Concurrent List (iii) Suspension of Fundamental Rights during emergency (iv) Advisory jurisdiction of the Supreme Court. Sources: 1. Australia 2. Canada 3. USSR 4. Weimar Germany.

(a) i-3, ii-1, iii-4, iv-2 (b) i-4, ii-1, iii-3, iv-2 (c) i-3, ii-2, iii-4, iv-1 (d) i-4, ii-2, iii-1, iv-3

Q. 13. Which one of the following is not currently recognised as part of the basic structure of the Constitution?

(a) Judicial review (b) Secularism (c) The right to property as a Fundamental Right (d) Free and fair elections

Q. 14. An establishment seeks to challenge a central labour statute on the ground that Parliament lacked competence to legislate on provident funds. The most direct constitutional answer is

(a) Article 43 of the Directive Principles (b) Entry 24 of the Concurrent List (c) Article 23 of the Fundamental Rights (d) the residuary power of Parliament under Article 248

10. Answers and Explanations

Q	Ans	Explanation
1	b	Constituted November 1946 under the Cabinet Mission Plan, 1946
2	c	Sir B. N. Rau . Ambedkar chaired the Drafting Committee - a different role
3	b	Ireland . The USSR gave Fundamental Duties - the classic swap
4	c	Three : Socialist, Secular, Integrity
5	b	Republic = elected, non-hereditary Head of State , office open to all. Option (a) is Secular; (c) is Sovereign/"We the people"; (d) is a separate feature
6	c	Ambedkar's two stated reasons: no agreement among States and no right to secede . (d) is true of India but is not why the word "Union" was chosen
7	c	The Preamble is part of the Constitution but is non-justiciable . (a), (b) and (d) are all correct
8	b	Statement 1 is wrong - <i>Berubari</i> (1960) held the opposite; <i>Kesavananda</i> (1973) held it is part of the Constitution. Statement 2 is correct
9	b	1 and 3 are correct. Statement 2 describes Golaknath , which <i>Kesavananda</i> overruled - Parliament <i>can</i> amend Fundamental Rights, but not destroy the basic structure
10	b	Entry 22 and Entry 24 are Concurrent. Statement 2 is wrong: social security and social insurance is Entry 23 of the Concurrent List , not the Union List
11	a	Citizenship and elections commenced on 26 November 1949. Fundamental Rights commenced on 26 January 1950
12	c	Fundamental Duties - USSR; Concurrent List - Australia ; suspension of rights in emergency - Weimar Germany; advisory jurisdiction - Canada
13	c	The right to property was removed as a Fundamental Right by the 44th Amendment, 1978 and is now a legal right under Article 300A. The other three are recognised basic-structure elements
14	b	Entry 24 of the Concurrent List expressly covers provident funds, so competence is direct. Article 43 is a non-enforceable directive; Article 248 residuary power is unnecessary when an express entry exists

THINK LIKE UPSC · WHAT QUESTIONS 10, 11 AND 13 WERE REALLY TESTING

None of those three tested whether you had read more. They tested whether you knew **one precise boundary**: Entry 23 is Concurrent and not Union; Fundamental Rights commenced in 1950 and not 1949; property was **removed** from Part III in 1978.

This is the texture of the APFC paper. It rewards precision on a bounded set of facts far more than broad reading. Build your revision around boundaries, not around volume.

11. Active Recall

Answer aloud or on paper before checking anything. Do this tomorrow, on day 7, and on day 21.

- 1 What two reasons did Ambedkar give for preferring "Union" to "Federation"?
- 2 Which case held the Preamble is part of the Constitution, and which case did it overrule on the amending power?
- 3 Name the three words inserted into the Preamble in 1976, and the three other things the same amendment gave us.
- 4 Which Article prohibits child labour, and is it a Fundamental Right or a Directive Principle?
- 5 Which Article requires the State to secure a living wage, and is it enforceable?
- 6 Which Entry of which List covers provident funds?
- 7 Give the two dates of adoption and commencement, and name three provisions that commenced on the earlier date.
- 8 Which single Act contributed the most provisions to the Constitution, and name four of them?
- 9 Which country gave us the Concurrent List? Which gave us Fundamental Duties?
- 10 Why is the basic structure deliberately not defined as a closed list?

12. One-Minute Revision

ONE-MINUTE REVISION

Constituent Assembly under **Cabinet Mission Plan 1946**, indirectly elected; first met **9 Dec 1946**; **Sachchidananda Sinha** temporary, **Rajendra Prasad** permanent chairman; **B. N. Rau** adviser; **Ambedkar** chaired the **Drafting Committee** (7 members, 29 Aug 1947); **Objectives Resolution by Nehru**, 13 Dec 1946.

Adopted 26 Nov 1949; commenced 26 Jan 1950. Took **2 years 11 months 18 days**. Originally **395 Articles, 22 Parts, 8 Schedules**; now about **470 Articles, 25 Parts, 12 Schedules**.

Largest source: **Government of India Act, 1935**. DPSP - **Ireland**; Fundamental Duties - **USSR**; Fundamental Rights and judicial review - **USA**; Concurrent List - **Australia**; strong Centre and residuary powers - **Canada**; emergency suspension of rights - **Weimar Germany**.

Preamble: **Sovereign Socialist Secular Democratic Republic; Justice, Liberty, Equality, Fraternity. Amended once - 42nd Amendment 1976 added Socialist, Secular, Integrity.** It is part of the Constitution (*Kesavananda* 1973, overruling *Berubari* 1960) but is **not enforceable**. **Kesavananda Bharati 1973**: 13 judges, 7:6; created **basic structure**; overruled **Golaknath 1967**; Preamble is part of the Constitution. **Minerva Mills 1980**: judicial review and limited amending power are basic structure.

Article 1: **"Union of States"** - no agreement among States, no right to secede.

Labour: **Concurrent List Entry 22** trade unions and disputes, **Entry 23** social security and insurance, **Entry 24** welfare of labour including **provident funds**. **Article 23** forced labour and **Article 24** child labour are **Fundamental Rights**; **Articles 39, 41, 42, 43, 43A** are **DPSP**.

13. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET

DATES 1946 Cabinet Mission · 9 Dec 1946 first meeting · 13 Dec 1946 Objectives Resolution · 29 Aug 1947 Drafting Committee · **26 Nov 1949 adopted** · **26 Jan 1950 commenced** · 1976 42nd Amendment · 1978 44th Amendment removes property

PEOPLE Sinha temporary · Rajendra Prasad permanent · B. N. Rau adviser · Ambedkar Drafting Committee · Nehru Objectives Resolution

NUMBERS 395 → about 470 Articles · 22 → 25 Parts · 8 → 12 Schedules · 2 years 11 months 18 days · 11 sessions · 7 Drafting Committee members · 13-judge bench, 7:6 in Kesavananda

42nd AMENDMENT BUNDLE Socialist + Secular + Integrity · Fundamental Duties · Article 43A

CASES Berubari 1960 not part → **Kesavananda 1973 part + basic structure + overrules**

Golaknath 1967 → Minerva Mills 1980 judicial review is basic structure → LIC 1995 reaffirms

SOURCES 1935 Act largest · Ireland DPSP · USSR Duties · USA Rights and judicial review · Australia Concurrent List · Canada strong Centre · Weimar emergency

APFC HOOK Entry 22, 23, **24 provident funds** - Concurrent List · Article 23 and 24 enforceable · Articles 39, 41, 42, 43, 43A not enforceable

ACTION · NEXT IN MODULE 1

Chapter 1.2 - The Union and its Territory; Citizenship ★★☆☆☆, then **Chapter 1.3 - Fundamental Rights, the writs, and Articles 23 and 24** ★★★★★, which is where the labour connection becomes examinable in its own right.